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JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

(Criminal Appeal No.79724/2021)

Ghulam Qadir vs **The State and another**
(Criminal Appeal No.79726/2021)

Kashif vs **The State and another**
(Criminal Revision No.2871/2022)

Muhammad Asif vs **The State, etc.**
(P.S.L.A. No.2870/2022)

Muhammad Asif vs **The State, etc.**

JUDGMENT

Date of hearing:	<u>30.04.2025</u>
Appellants by:	Mr. Muhammad Iftikhar Ullah Dhillon, Advocate for the appellants along with Kashif (appellant on bail).
State by:	Mr. Nisar Ahmad Virk, Deputy Prosecutor General along with Asif, S.I.
Complainant by:	Mr. Muhammad Ahsan Nizami, Advocate for the complainant and also for the petitioner in Crl. Rev. No.2871/2022 as well as for the petitioner in P.S.L.A. No.2870/2022.

Farooq Haider, J:- This single judgment will dispose of **Crl. Appeal No. 79724/2021** filed by Ghulam Qadir (appellant/convict) against his “conviction & sentence”, **Criminal Appeal No.79726/2021** preferred by Kashif (appellant/convict) against his “convictions & sentences”, **Criminal Revision No.2871/2022** filed by Muhammad Asif (complainant) for enhancement of sentences of Ghulam Qadir and Kashif as well as convicting and sentencing both of them for offences under Sections: 148, 149, 449 PPC as well and **P.S.L.A. No.2870/2022** filed by Muhammad Asif (complainant) against order of acquittal of Shah Nawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir from the charges as all the matters have arisen out of one and the same impugned judgment dated: 02.12.2021 passed by learned Additional Sessions Judge, Pattoki/trial court.

2. Ghulam Qadir and Kashif (appellants) alongwith their co-accused persons namely Shah Nawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir were summoned and charge was framed against all accused except Shoban (who died earlier to that) on 01.06.2017 in complaint case titled as **“Muhammad Asif versus Ghulam Qadir, etc.”** under Sections: 302, 324, 337 A(i), 337 F(i), 148, 149, 449 PPC (Shoban/co-accused, could not be tried being dead) and after conclusion of the trial, while acquitting aforementioned co-accused persons namely Shahnawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir *vide* impugned judgment dated: 02.12.2021, trial court has convicted and sentenced the appellants as under: -

GHULAM QADIR

<u>Conviction</u>		<u>Sentence</u>
1	<u>Under Section:</u> 302 (b) PPC	<i>“Imprisonment for Life”</i> with payment of compensation of Rs.2,00,000/- under Section: 544-A Cr.P.C. to the legal heirs of the deceased and in default whereof to further undergo S.I. for six months. Benefit of Section: 382-B Cr.P.C. was extended in favour of the accused.

KASHIF

<u>Conviction</u>		<u>Sentence</u>
1	<u>Under Section:</u> 324 PPC	<i>“Five Years”</i> Rigorous Imprisonment along with fine of Rs.50,000/- to be paid to Qasim (injured) as required under Section: 544-A Cr.P.C. and in default whereof to further suffer S.I. for three months. Benefit of Section: 382-B Cr.P.C. was extended in favour of the accused.
2	<u>Under Section:</u> 337 A(i) PPC	<i>“Daman”</i> amounting to Rs.40,000/- and in case of non-payment of the same, it was directed that the accused will remain in jail till full payment of <i>“Daman”</i> and shall be dealt with the same manner, if sentenced to simple imprisonment.

3. Primarily, Muhammad Asif (complainant/PW-1) set the machinery of law into motion by moving application (Ex.PA) to Muhammad

Abbas, 704/HC (CW-2) in Police Station: Saddar Pattoki, District Kasur while mentioning therein that he (complainant/PW-1) is resident of Dhana Chak No.12, Tehsil Chunian, District Kasur and cultivator by profession; on 25.06.2014 at about 7:30 p.m., he and his brothers namely Yasin, Qasim Ali, Naseem Asghar, sister namely Misbah Shaheen and other family members were present in their house; aforementioned accused persons while armed with their respective weapons trespassed into the house of the complainant forcibly defiling the sanctity of four walls of the house; Shah Nawaz raised *lalkara* to teach lesson to Yasin (brother of the complainant) for abusing and insulting them today over dispute of sewerage (نالی), upon which accused Ghulam Qadir fired shot with his rifle at Yasin, which landed at his right flank and went through and through; accused Kashif made fire with his .12-bore repeater, which crossed while touching upper side of head of Qasim; accused Shah Nawaz fired shot with his pump action and pellets landed on forehead, shoulder and chest of the complainant; accused Saif Ullah fired shot with his pump action and pellets hit at waist and backside of right shoulder of the complainant; accused Javed Asif fired shot with his repeater .12-bore landing at left shin of Misbah Shaheen; in the meanwhile remaining accused persons also resorted to indiscriminate firing; Ghulam Qadir and Shah Nawaz became injured due to firing of their companions; thereafter accused persons made good their escape with their respective weapons; besides the complainant, occurrence was witnessed by Qasim Ali, Misbah Shaheen and Naseem Asghar.

Motive behind the occurrence was that about 10/15 minutes prior to the occurrence, a quarrel regarding sewerage (نالی) took place between accused persons Ghulam Qadir and Shah Nawaz with Yasin (brother of the complainant) and Yasin had abused accused persons Ghulam Qadir and Shah Nawaz; due to said grudge, accused persons in connivance with each other while armed with firearms trespassed into the house of the complainant defiling the sanctity of four walls of the house and committed murder of Yasin with fire shot; straight fire shots were made with intention to kill Qasim Ali, Misbah Shaheen and the complainant; Yasin was being

taken to the hospital in injured condition but he succumbed to the injuries on the way.

On the basis of aforementioned application (Ex.PA), case was registered *vide* F.I.R. No.270/2016 (Ex.CW-2/A) dated: 25.06.2016 under Sections: 302, 324, 452, 148, 149 PPC at Police Station: Saddar Pattoki, District Kasur; however, being dissatisfied with the investigation carried out by the local police, complainant filed “**complaint**” against Ghulam Qadir, Shah Nawaz, Shoban (since dead), Imdad, Saif Ullah, Javed Asif, Kashif, Ali Akbar, Shabbir, Mirza Javed, Sajjad, Fiaz, Amir and Shah Muhammad under Sections: 302, 324, 337 A(i), 337 F(i), 148, 149, 449 PPC.

Accused persons were formally charge sheeted to which they pleaded not guilty and claimed trial however Sajjad, Fiaz and Amir became absent during trial; complainant produced three witnesses to prove the charge against the accused whereas seven witnesses were examined by the trial Court as Court Witnesses. Medical evidence was furnished by Dr. Muhammad Jawad Afzal (CW-5) and Dr. Sadia Ashraf (CW-6) whereas Muhammad Asif (complainant/PW-1), Qasim Ali (injured/PW-2) and Mst. Misbah Shaheen (injured/PW-3) have furnished the ocular account; investigation was conducted by Muhammad Iqbal, S.I. (CW-7); thereafter statements of the appellants and their co-accused persons were recorded under Section: 342 Cr.P.C. in which they refuted all the allegations levelled against them; the appellants did not appear as their own witnesses under Section: 340 (2) Cr.P.C., however, they produced some documentary evidence (Ex.DB, Ex.DC, Ex.DD, Ex.DE, Ex.DF and Mark-A) in their defence. Trial court after conclusion of trial **while acquitting co-accused persons namely Shahnawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir,** has convicted and sentenced the appellants as mentioned above through the impugned judgment.

4. Learned counsel for the appellants has submitted that convictions recorded against and sentences awarded to the appellants through impugned judgment are against the ‘law and facts’ and result of non-reading/misreading of evidence; ocular account is not trustworthy and

also not supported by medical evidence; prosecution has failed to prove its case. Learned counsel for the appellants finally prayed for acquittal of the appellants and dismissal of P.S.L.A. filed against order of acquittal of accused persons as well as revision for enhancement of sentences.

5. Conversely, learned Deputy Prosecutor General and learned counsel for the complainant have supported the impugned judgment to the extent of convictions recorded against Ghulam Qadir and Kashif (appellants) and prayed for dismissal of their appeals. Learned Deputy Prosecutor General assisted by learned counsel for the complainant in support of petition for special leave to appeal (P.S.L.A.) against order of acquittal of Shah Nawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir from the charges, has submitted that said order of acquittal is against the law and facts; result of misreading and non-reading of evidence; prosecution has proved its case against them too, up to hilt and they may be convicted and sentenced as per charge framed against them. In support of revision petition for enhancement of sentences of the appellants as well as for their conviction in offences under Sections: 148, 149, 449 PPC, learned counsel for the complainant has submitted that since prosecution has proved its case against Ghulam Qadir and Kashif (appellants) up to hilt, therefore, they may be sentenced accordingly.

6. Arguments heard. Record perused.

7. As per case of prosecution, Muhammad Asif (complainant/PW-1) moved application (Ex.PA) for registration of the case at the Police Station and in the light of the same, FIR (Exh.CW-2/A) was registered at 09:05 p.m. on 25.06.2016. This case was registered against 14 (fourteen) accused persons and out of said fourteen accused persons, Ghulam Qadir (appellant in Crl. Appeal No.79724/2021) and Kashif (appellant in Crl. Appeal No.79726/2021) have been convicted and sentenced as detailed above whereas Shah Nawaz who according to case of prosecution raised *lalkara* and fired shot with pump action at complainant and pellets hit at the face, shoulder and chest of complainant, Saif Ullah who fired shot with .12-bore pump action at complainant, pellets of the same hit at waist and

backside of right shoulder of the complainant, Javed Asif who fired shot with repeater .12-bore which hit at left shin of Misbah Shaheen, remaining accused persons who made firing at random and Ghulam Qadir as well as Shah Nawaz (aforementioned accused persons) received injuries due to their firing and accused who were armed with *sota* have been acquitted in this case through the impugned judgment dated: 02.12.2021 passed by learned Additional Sessions Judge, Pattoki however Shoban (accused) died during trial of the case. So co-accused persons namely Shah Nawaz, Saif Ullah and Javed Asif, who were attributed with effective roles of causing firearm injuries to the complainant (PW-1) and Misbah Shahin (injured witness/ PW-3) have been acquitted along with other acquitted co-accused persons and evidence of the prosecution witnesses to the extent of 11 (eleven) co-accused persons has been disbelieved, therefore, said evidence now can only be relied and used against Ghulam Qadir and Kashif (present appellants) if same is strongly corroborated by the independent evidence; in this regard, guidance has been sought from the dictum laid down in the cases of **“Munir Ahmad and another versus The State and others”** (2019 SCMR 79), **“ALTAF HUSSAIN versus The STATE”** (2019 SCMR 274), **“MUHAMMAD IDREES and another versus The STATE and others”** (2021 S C M R 612), **“PERVAIZ KHAN and another versus The STATE”** (2022 S C M R 393), **“RAFAQAT ALI versus The STATE”** (2022 S C M R 1107) and **“SAJJAD HUSSAIN versus The STATE and others”** (2022 S C M R 1540).

As per own case of prosecution, occurrence took place at 7:30 p.m. on 25.06.2016 whereas same was reported to the police through written application (Ex.PA) at the Police Station at 09:05 p.m. when FIR (Ex.CW-2/A) was registered while distance of place of occurrence from the Police Station is just 16 (sixteen) kilometres as per column No.4 of the FIR and it is relevant to mention here that as per aforementioned FIR (Ex. CW-2/A), Yasin (deceased of the case) died on the way while taking to the hospital, meaning thereby that Yasin died before registration of the case i.e. 09:05 p.m. on 25.06.2016 whereas post-mortem examination was conducted on dead body of Yasin at 5:00 a.m. on 26.06.2016 while dead body as well as

police documents were received at 4:00 a.m. on 26.06.2026; in this regard, relevant portion of statement of Dr. Muhammad Jawad Afzal (CW-5) who conducted post-mortem examination on the dead body of the deceased in this case, is hereby reproduced as follows:-

“Stated that on 26.06.2016, I was posted as MO at THQ, Pattoki. On the same day, dead body of deceased namely Muhammad Yasin s/o Bashir Ahmed was brought by Zulfiqar and Muhammad Iqbal SI, P.S Saddar Pattoki, district Kasur at 04:00 AM and I received police documents at 04:00 AM and conduct autopsy at 05:00 AM on same date.”

meaning thereby that post-mortem examination was conducted after about nine and half hours of the occurrence and after about seven and half hours of registration of the case as per own case of the prosecution. So, it is crystal clear that post-mortem examination has been conducted with delay and reason for such delay is very much clear from aforementioned statement of Dr. Muhammad Jawad Afzal (CW-5) that police papers were handed over to the Doctor at 04:00 a.m., which state of affairs clearly shows that police papers for autopsy were not promptly prepared and time was consumed for consultation, deliberation and tailoring story for registration of the case which resulted into preparation of documents for autopsy with delay and ultimately conducting post-mortem examination with delay also and in such circumstances, First Information Report (crime report), which is cornerstone of the case of the prosecution, cannot be termed as promptly recorded rather it can be safely said that same was recorded with delay, however, ante-time has been mentioned in the record, and such sort of FIR cannot provide any support to the case of prosecution and superstructure i.e. case of prosecution raised on the basis of such sort of FIR is bound to fall and in this regard, cases of **“HAROON SHAFIQUE versus The STATE and others”** (2018 SCMR 2118), **“MUHAMMAD RAFIQUE alias FEEQA versus The STATE”** (2019 SCMR 1068), **“SUFYAN NAWAZ and another versus The STATE and others”** (2020 SCMR 192) and **“MUHAMMAD ADNAN and another versus The STATE and others”** (2021 SCMR 16) can be safely referred.

It is well settled that when there is delay in reporting the incident to the police, then prosecution is under obligation to explain such delay and failure to do that will badly reflect upon the credibility of

prosecution version. In this regard, guidance has been sought from the case of **“Mst. Asia Bibi versus The STATE and others” (PLD 2019 Supreme Court 64)**; relevant portion from paragraph No.29 of said case law is hereby reproduced: -

“There is no cavil to the proposition, however, it is to be noted that in absence of any plausible explanation, this Court has always considered the delay in lodging of FIR to be fatal and casts a suspicion on the prosecution story, extending the benefit of doubt to the accused. It has been held by this Court that a FIR is always treated as a cornerstone of the prosecution case to establish guilt against those involved in a crime; thus, it has a significant role to play. If there is any delay in lodging of a FIR and commencement of investigation, it gives rise to a doubt, which, of course, cannot be extended to anyone else except to the accused...”

So far as ocular account in this case is concerned, same was provided by Muhammad Asif (complainant/PW-1), Qasim Ali (PW-2) and Mst. Misbah Shaheen (PW-3). By now it is also well settled that mere presence of injury on the person of prosecution witness does not stamp him to be a truthful witness; in this regard, guidance has been sought from the cases of **“Amin Ali and another versus The State” (2011 SCMR 323)**, **“MUHAMMAD ARIF versus The STATE” (2019 SCMR 631)** and **“Ishtiaq Hussain and another versus The State and others” (2021 SCMR 159)**.

It is also relevant to mention here that Muhammad Asif (complainant/PW-1) introduced dishonest improvements and contradictions during his statement before the court and detail of the same reads as follows:-

“It is correct that I did not got recorded in the application for registration of FIR (Exh.PA), private complaint (Exh.PB) and in my cursory statement that accused Ghulam Qadir was armed with riffle but not specifically mentioned the bore of weapon i.e. 303 bore. It is correct that in private complaint as well as in my cursory statement I had not mentioned that accused Imdad Hussain was armed with .30-bore pistol, Shabbir Hussain, Ali Akbar were armed with Sotas, accused Shoban, accused Mirza Javeed, accused Sajjad, accused Fayyaz were all armed with .30 bore pistols and accused Amir and Shah Muhammad were armed with Sotas.”

“It is correct that in my application for registration of FIR, private complaint and cursory statement that I had not mentioned that any of accused was armed with .9MM pistol.”

Dishonest improvements, omissions and contradictions introduced by Qasim Ali (PW-2) are as follows:-

“It is correct that in my statement to the police and cursory statement in the private complaint, I stated that accused Ghulam Qadir was armed with riffle but I did not specify its bore i.e.303 bore.”

“On first inspection by I.O. he prepared on-scaled site plan on pointation of me and other eye witnesses. It is correct that I did not specific place where injured accused persons Shahnawaz and Ghulam Qadir sustained injuries. It is correct that in my statement to the police and cursory statement, I did not specify that who fired at accused persons Shahnawaz and Ghulam Qadir and fire shot were made us in self defense.”

“It is correct that I did not witness fact of taking snaps of dead body and recovery memos thereof. It is correct that in my statement to the police I stated that Yasin in injured condition was being taken to hospital and on his way he died without mentioning his transportation to Jinnah Hospital, Lahore.”

“It is correct that in my statement to the police, cursory statement and examination in chief I did not specify the accused persons who made fire shots of Kalashnikov and .9MM pistol of which seven crime empties of .9MM and live crime empties of Kalashnikov were recovered vide recovery memo Exh.PC. It is correct that during the course of investigation I had been appearing before SHO, DSP and SP investigation Kasur where I did not specify that who made fire shots of Kalashnikov and .9MM pistol.”

Dishonest improvements, omissions and contradictions introduced by Mst. Misbah Shaheen (PW-3) are also reproduced as under:-

“It is correct that in my statement to the police and cursory statement in the private complaint, I stated that accused Ghulam Qadir was armed with riffle but I did not specify its bore i.e. .303 bore.”

“On first inspection by I.O. he prepared un-scaled site plan on pointation of me and other eye witnesses. It is correct that I did not specific place where injured accused persons Shahnawaz and Ghulam Qadir sustained injuries. It is correct that in my statement to the police and cursory statement, I did not specify that who fired at accused persons Shahnawaz and Ghulam Qadir and fire shots were made by my brothers in self defense.”

“I was in THQ hospital, Pattoki when I received information from my brother Qasim that my brother Yasin deceased succumbed to the injuries on way to Lahore and I received that information on 25.06.2016 at 09:30 PM. I was medically examined at THQ, Chunian after 2/3 days of the occurrence.”

“It is correct that in my statement to the police I stated that Yasin in injured condition was being taken to hospital and on his way he died without mentioning his transportation to Jinnah Hospital Lahore.”

“It is correct that in my statement to the police, cursory statement and examination in chief I did not specify the accused persons who made fire shots of Kalashnikov and .9MM pistol of which seven crime empties of .9MM and five crime empties of Kalashnikov were recovered vide recovery Exh.PC. It is correct that during the course of investigation I had been appearing before SHO, DSP and SP investigation Kasur where I did not specify that who made the shots of Kalashnikov and .9MM pistol.”

“It is correct that our statements were recorded on 26.06.2016.”

Therefore, all eyewitnesses (mentioned above) including complainant and injured witnesses have made dishonest improvements in order to strengthen the case.

It is trite law that if prosecution witness including injured witness introduces dishonest improvement in order to strengthen the case, then his evidence is to be thrown away altogether and cannot be relied upon; in this regard, guidance has been sought from the cases of “**Muhammad Mansha versus The State**” (2018 SCMR 772), “**Muhammad Arif versus The State**” (2019 SCMR 631), “**Naveed Asghar and two others versus The State**” (PLD 2021 SC 600) and “**Khalid Mehmood and another versus The State and others**” (2021 SCMR 810).

It is also relevant to mention here that it is mentioned in the application for registration of the case (Exh.PA), FIR (Ex.CW-2/A) and complaint (Ex.PB) that Ghulam Qadir (appellant) and Shah Nawaz (since acquitted co-accused) also received firearm injuries by the firing of their co-accused persons but aforementioned prosecution witnesses i.e. PW-1, PW-2 and PW-3 did not point out the place of receipt of firearm injuries by said accused to Investigation Officer and draftsman at the time of preparation of site plan of place of occurrence and any point to show that where Ghulam Qadir and Shah Nawaz received injuries, where their blood fell and where is their blood trail is not available in the site plan prepared by police as well as by draftsman and said witnesses also did not disclose rather suppressed that who shifted said co-accused persons from the place of occurrence to the hospital and where and when they were medically examined and prosecution even did not disclose that where are their medicolegal examination certificates, who Medical Officer medically examined them and issued their medicolegal examination certificates and even any Medical Officer who medically examined/treated said accused persons was neither cited as witness nor examined during trial of the case rather these all things have been suppressed/concealed by the complainant and other prosecution witnesses of ocular account and in this regard relevant portions of the statement of complainant (PW-1) are reproduced as under:-

“I do not know who shifted Shahnawaz and Ghulam Qadir to hospital from place of occurrence.”

“I never pointed out the place where the blood of Shahnawaz and Ghulam Qadir fell and I did not state this fact in scaled and unscaled site plan.”

however, Muhammad Iqbal, S.I. (CW-7) during cross-examination stated that Shah Nawaz and Ghulam Qadir received firearm injuries on their chest which pierced through, who accused were medically examined through Police Post Habibabad, medical examination through police amounts to information to police and both said accused dashed to ground after receiving fire shot injuries and in this regard relevant portions from the statement of Muhammad Iqbal, S.I. (CW-7) are hereby reproduced as follows:-

“According to my investigation accused Shahnawaz and Ghulam Qadir received firearm injuries on their chest which pierced through. Accused were medically examined through police post Habibabad.”

“Medical examination of accused through police amounts to information to police.”

“It is correct that accused Ghulam Qadir and Shahnawaz both dashed to ground after received fire shot injuries.”

“It is correct that columns of FIR number, police station and date is empty in inquest report.”

“The deceased was not referred to Lahore from Pattoki hospital in critical condition.”

(emphasis added)

CW-7 during statement before the court deposed that Naeem Asghar was found involved in the cross-version case and relevant portion of his statement is as under:-

“In cross version case accused Naeem Asghar was found involved in the occurrence....”

It was admitted by Muhammad Asif (complainant/PW-1) during his cross-examination that cross-firing was made between both the parties; relevant portion of his statement in this regards is hereby reproduced as follows:-

“Cross firing took place between the parties 2/3 minutes.”

It goes without saying that according to application for registration of the case (Ex.PA), FIR (Ex.CW-2/A) and complaint (Ex.PB) as well as statements of complainant and other eye witnesses i.e. PW-1, PW-2 and PW-3, neither any accused was equipped with Kalashnikov nor with .9mm

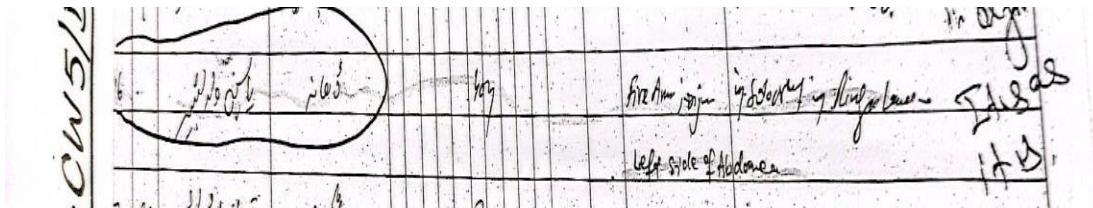
pistol but it is strange enough that empties of .9mm pistol and Kalashnikov were recovered from the spot. Now question does arise that who used Kalashnikov and .9mm pistol at the place of occurrence. It is also relevant to mention here that Muhammad Iqbal, S.I. (CW-7) stated in this regard as under:-

“In my investigation I did not mention that who used Kalashnikov of which five empties were recovered. 7 empties of 9MM were collected from the spot.”

It is important to mention here that .9mm pistol was subsequently recovered from the possession of the complainant; in this regard, relevant portion of the statement of Muhammad Asif (complainant/PW-1) is reproduced as under:-

“It is correct that FIR No.902/16 U/s 13/20/65 A.O. P.S. City Pattoki was registered against me when I was present in Court premises, Pattoki and police recovered .9MM pistol from me.”

In such state of affairs when cross-firing has been admitted by the complainant in his statement before the court, then availability of empties of .9mm pistol and Kalashnikov (when as per application for registration of case “Ex.PA” and complaint “Ex.PB”, any accused was not equipped with Kalashnikov or pistol .9mm) clearly shows that actual facts have been suppressed by the prosecution witnesses i.e. PW-1, PW-2 and PW-3. It is worth mentioning here that on 01.07.2016, complainant produced Kalashnikov before the Investigating Officer while mentioning that same was snatched from Shahnawaz (accused) on the day of occurrence but as per application for registration of the case (Ex.PA), FIR (Ex.CW-2/A) and complaint (Ex.PB), Shahnawaz was armed with pump action gun .12-bore and not with Kalashnikov, hence same was also dishonest improvement on the part of the prosecution. Furthermore, complainant in application for registration of case (Exh.PA) mentioned that Yasin was being taken to the hospital in injured condition who succumbed to the injuries on the way but said fact has clearly been negated by copy of Hospital Register (Ex.CW5/DA, available at page No.252 of the Paper-Book), which reflects that Yasin was brought in the hospital in injured condition where medical treatment was given to him and relevant portion of said Register is hereby scanned below:-



As per statements of Muhammad Asif (complainant/PW-1), Qasim Ali (PW-2) and Mst. Misbah Shaheen (PW-3) as well as application for registration of the case (Ex.PA), FIR (Ex.CW-2/A) and complaint (Ex.PB), Misbah Shaheen received firearm injury at her left shin/calf whereas Dr. Sadia Ashraf (Women Medial Officer/CW-6) who conducted her medical examination clearly stated that kind of weapon used was “blunt” which fact on the one hand negates the ocular version to the extent of said injury and on the other hand raises question mark about the testimony of complainant (PW-1), Qasim Ali (PW-2) and Mst. Misbah Shaheen (PW-3).

It is relevant to mention here that as per site plan (Ex.CW-4/A), “H” is the point from where Ghulam Qadir fired shot at Yasin (deceased) and distance between them has been mentioned as 3-feet whereas if length of barrel of the rifle as well as length of arm is deducted from three feet, then it becomes very close range which results burning on the entry wound but burning is not present on the entry wound of the deceased.

So when all the aforementioned factors are taken into consideration in totality, then it is crystal clear that though PWs No.1, 2 and 3 have been mentioned as injured witnesses but they have suppressed the actual facts and their testimonies are neither confidence inspiring nor truthful hence not reliable.

So far as medical evidence is concerned, same is not supporting the ocular account to the extent of Mst. Misbah Shaheen (as discussed above) and as far as Yaseen (deceased of the case) is concerned, it is relevant to mention here that in the post-mortem examination report (Ex.CW5/A), probable time that elapsed between injury and death as well as between death and post-mortem has been mentioned as “Not Certain” and relevant portion of the report is scanned below:-

OPINION :

Probable time that elapsed-----

(a) Between injury and Death..... Not certain

(b) Between death and post mortem..... Not certain

Dated: 25-06-2016

Signature of Medico Legal Examiner (s)
(Stamp by name & Designation)

and relevant portion of statement of Dr. Muhammad Jawad Afzal (CW-5) is also reproduced as under:-

“It is correct that as per autopsy report time between injury and death and death and postmortem is mentioned as uncertain.”

so it did not provide support/confirmation to the ocular version with regard to time of occurrence as well as death and hence of no help to the prosecution in this regard.

It is trite law that medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same neither can provide any corroboration nor is of any help to the prosecution in peculiar facts and circumstances of the case, in this regard, cases of “**Akbar Ali versus The State**” (2007 SCMR 486), “**SAJJAN SOLANGI versus The STATE**” (2019 SCMR 872) and “**Naveed Asghar and two others versus The State**” (PLD 2021 SC 600) can be safely referred.

So far as recovery of .303 bore rifle from Ghulam Qadir (appellant) is concerned, suffice it to say that in the application for registration of the case (Ex.PA), FIR (Ex.CW-2/A) as well as complaint (Exh.PB), it was mentioned that he (Ghulam Qadir) was equipped with rifle and .303-bore rifle was not mentioned; furthermore report of Punjab Forensic Science Agency, Lahore (Ex.PF) reveals that empties of .303 calibre cartridge cases were found as not having been fired from the rifle allegedly recovered from Ghulam Qadir, therefore, said recovery cannot provide any corroboration to the ocular version/case of prosecution against Ghulam Qadir (appellant).

As far as recovery of .12-bore repeater from Kashif (appellant) coupled with report of Punjab Forensic Science Agency, Lahore (Exh.PF) regarding matching of two shotshell cases of 12G with said gun is concerned, it is relevant to mention that as per case of prosecution, empties

from the place of occurrence were secured through recovery memo (Ex.PC) and said recovery memo was attested by Qasim Ali (PW-2) and Naseem Asghar (given-up witness), however, Qasim Ali while appearing as PW-2 during trial of the case did not depose that any crime empty of .12-bore gun was secured from the place of occurrence and relevant portion of his statement in this regard is hereby reproduced as under:-

“On the same day, I.O secured fire crime empties of .30-bore pistol (P1/1-5), seven crime empties of .9MM (P2/1-7), eight crime empties of .303 bore (P3/1-8), five crime empties of Kalashnikov (P4/1-5) from the place of occurrence, prepared parcels and took them into possession vide recovery memo (Exh.PC) which was attested by me and Naseem Asghar.”

So, when Qasim Ali (PW-2) has not mentioned in his statement that any empty of .12-bore gun was recovered from the place of occurrence, then report of Punjab Forensic Science Agency, Lahore (Exh.PF) regarding matching of two empties with allegedly recovered .12-bore gun from Kashif (appellant) is inconsequential, therefore, said recovery can also not provide any corroboration to the case of prosecution against Kashif (appellant).

Motive has already been disbelieved by the trial court on the basis of valid reasons.

Hence any corroboration what to speak of strong corroboration could not be provided to the ocular version/case of the prosecution against present appellants.

8. It is well established principle of law that single dent/circumstance in case of prosecution is sufficient for acquittal; in this regard, case of “**ABDUL GHAFUOR versus The STATE**” (2022 S C M R 1527) can be safely referred.

9. In the instant case after examining the prosecution case from all corners and evaluating it on the touchstone of principle of “safe administration of criminal justice”, this Court has arrived at the conclusion that in this case, the prosecution has miserably failed to establish its case against the appellants beyond reasonable doubt. As prosecution has failed to prove its case against the appellants, therefore, there is no need to discuss defence version.

10. Resume of above discussion is that since prosecution has been failed to prove its case against both the appellants, therefore, **Crl. Appeal No.79724/2021** filed by Ghulam Qadir (appellant) and **Crl. Appeal No.79726/2021** filed by Kashif (appellant) are **allowed/accepted**; convictions recorded and sentences awarded to aforementioned appellants through impugned judgment dated: 02.12.2021 passed by learned Additional Sessions Judge, Pattoki/trial Court, are hereby set aside. Resultantly, Ghulam Qadir and Kashif (appellants) are acquitted of the charge. Ghulam Qadir (appellant) be released from jail forthwith, if not required in any other case. Kashif (appellant) is on bail, as during pendency of his appeal (mentioned above), execution of his sentences was suspended *vide* order dated: 21.03.2023 passed by this Court in Crl. Misc. No.1/2022, therefore, his surety stands discharged from his liability.

11. So far as **P.S.L.A. No.2870/2022** filed by Muhammad Asif (complainant) against order of acquittal of Shah Nawaz, Imdad, Saif Ullah, Javed Asif, Ali Akbar, Shabbir, Mirza Javed, Shah Muhammad, Sajjad, Fiaz and Amir from the charges passed by trial court through impugned judgment dated: 02.12.2021 is concerned, suffice it to say that prosecution has failed to prove case against all the accused persons (mentioned above) through leading cogent and confidence inspiring evidence. By now it is well settled that acquittal cannot be disturbed for the reason that another view was equally possible; in this regard, guidance is sought from the dictum laid down by the Supreme Court of Pakistan in the case of “**MUHAMMAD ZAMAN versus THE STATE and others**” (2014 SCMR 749). Furthermore, after acquittal, accused attains double presumption of innocence and same can only be disturbed/interfered with if it is capricious/fanciful/perverse/speculative/artificial or arbitrary, however, without these factors, order of acquittal cannot be interfered with and in this regard, reliance can be placed upon the cases of “**GHULAM SIKANDAR AND ANOTHER versus MAMARAZ KHAN AND OTHERS**” (PLD 1985 Supreme Court 11), “**Mst. ZAHIDA SALEEM versus MUHAMMAD NASEEM and others**” (PLD 2006 Supreme Court 427) and “**JAVAID AKBAR versus MUHAMMAD AMJAD AND JAMEEL @ JEELA and another**” (2016 SCMR 1241); further guidance in this

regard is also sought from the cases of “Haji PAIO KHAN versus SHER BIAZ and others” (2009 SCMR 803) and “MUHAMMAD SHAFI alias KHDDOO versus The State and others” (2019 SCMR 1045); from, latter case law, relevant portion is reproduced:-

“It is by now well settled that acquittal carries with it double presumption of innocence; it is reversed only when found blatantly perverse, resting upon fringes of impossibility and resulting into miscarriage of justice. It cannot be set aside merely on the possibility of a contra view.”

Thus, P.S.L.A. No.2870/2022 is dismissed.

12. For the reasons recorded *supra*, Criminal Revision No.2871/2022 filed by Muhamad Asif (complainant/PW-1) for enhancement of sentences of Ghulam Qadir and Kashif as well as convicting and sentencing both of them for offences under Sections: 148, 149, 449 PPC, also stands dismissed.

(Farooq Haider)
Judge

“Approved for reporting.”

(Farooq Haider)
Judge

This judgment has been dictated and pronounced on 30.04.2025 whereas after its preparation and completion signed on 02.05.2025.

Asif